

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC039866: WELLS FARGO BANK, NATIONAL ASSOCIATION vs LAW
OFFICES OF MICHAEL E. REZNICK, PROFESSIONAL CORPORATION, AKA
MICHAEL E. REZNICK, A PROFESSIONAL CORPORATION, et al.

07/09/2026 in Department 21

Motion for Summary Judgment and/or Adjudication

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Summary Adjudication (*Opposed*)

Tentative Ruling:

Plaintiff Wells Fargo Bank’s Motion for Summary Adjudication is **GRANTED in part and DENIED in part**.

The motion is **GRANTED** as to the **First Cause of Action for Breach of Contract** against Law Offices of Michael E. Reznick.

The motion is **GRANTED** as to the **Second Cause of Action for Account Stated** against Law Offices of Michael E. Reznick.

The motion is **DENIED** as to the **Fourth Cause of Action for Breach of Guaranty** against Michael E. Reznick individually.

Plaintiff did not move for summary adjudication of the Third Cause of Action for Money Lent.

Because the Court denies summary adjudication of the Fourth Cause of Action on the present record, Defendants’ alternative request for a continuance under CCP § 437c(h), to depose Lauren Waggoner is **MOOT**.

Counsel for Plaintiff to give notice.

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Preliminary Matters

(1) Late Opposition

Defendants' opposition was untimely. The hearing is set for July 9, 2026. Under CCP § 437c(b)(2), opposition papers were due at least 20 days before the hearing. Because the twentieth day before the hearing fell on June 19, 2026, a court holiday, the opposition was due no later than June 18, 2026. Defendants filed and served their opposition on June 25, 2026.

The Court has discretion to refuse to consider an untimely opposition. However, the Court exercises its discretion to consider the opposition. Plaintiff filed a reply addressing both the untimeliness issue and the merits of the late-filed opposition. The Court will therefore decide the motion on the merits.

(2) Undisputed and Established Facts

For purposes of this motion only, the Court finds:

Undisputed and established: UMF Nos. 2-1, 2-2, 2-4, 2-5, 3-6, 3-8, 3-11

Undisputed and not established: None.

Disputed and established: UMF Nos. 1-1, 1-2, 1-3, 1-4 (limited to funds advanced/statements delivered, not full performance), 1-5, 1-6, 1-7, 1-8, 1-9, 2-3 (undisputed and established as to regular delivery of statements that stated the total amount owed, disputed as to correctness of balance), 2-6, 2-7, 3-1, 3-2, 3-3 (limited to the establishment of a business line of credit for Law Offices of M. Reznick, account #5241), 3-4, 3-5 (limited to funds advanced, not full performance), 3-7, 3-9, 3-10, 3-12 (limited to nonpayment after demand, not enforceability of guaranty)

Disputed and not established: None as to the basic historical facts but subject to the limitations above.

Non-material facts: AF-1, AF-2. Facts pertaining to attorney fees are not material facts pertinent to the disposition of the causes of action, affirmative defenses, or damages. (California Rule of Court, rule 3.1350(d).) Entitlement to attorney fees will be subject to a post judgment motion.

Background: This is a verified collection action by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") against Law Offices of Michael E. Reznick, Professional Corporation and Michael Eugene Reznick individually ("Defendants"). Plaintiff alleges that the Defendants obtained a BusinessLine line of credit ending in account number 5241 on or about August 8, 2013, and later defaulted by failing to make required monthly payments.

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Wells Fargo alleges that the last payment was made July 13, 2023, that it accelerated the balance, and that \$66,255.92 remains due. The complaint seeks this principal amount, applicable unpaid fees, attorney's fees, costs, and equitable relief.

On March 7, 2025, Plaintiff filed a verified Complaint asserting four causes of action: (1) Breach of Contract; (2) Account Stated; (3) Money Lent; and (4) Breach of Guaranty against Michael E. Reznick individually, alleging he personally guaranteed the business debt.

Plaintiff seeks summary adjudication on three causes of action: breach of contract against the law office, account stated against the law office, and breach of guaranty against Defendant Reznick individually. It does not seek adjudication on the third cause of action for money lent.

Discussion:

1. First Cause of Action (Breach of Contract against Law Offices of M. Defendant Reznick)

To prevail on a breach of contract claim in California, the plaintiff must prove (1) The existence of a contract; (2) Plaintiff's performance of the contract or excuse for nonperformance; (3) Defendant's breach; and (4) Resulting damages to plaintiff. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; see also CACI No. 303.)

Plaintiff has established the existence of the BusinessLine credit agreement, Plaintiff's extension of credit, the corporate borrower's promise to repay, nonpayment/default, charge-off, and the claimed balance of \$66,255.92. (UMF Nos. 1-1 – 1-9.) The opposition does not materially dispute that the professional corporation obtained the line of credit, received advances, and failed to make required payments. Defendants' main fraud/estoppel argument is directed at Defendant Reznick's personal guaranty, not at whether the corporate borrower is liable on the business line of credit. Defendants also dispute the amount of damages. Although Defendants attempt to dispute the damages, Defendants offer no evidence to contradict the amount shown as due and owing in the final account statement.

In sum, the Court GRANTS Plaintiff's summary adjudication as to the first cause of action for breach of contract against Defendant Law Offices of Michael E. Reznick.

2. Second Cause of Action (Account Stated against Law Offices of M. Defendant Reznick)

An account stated is generally described as an agreement, based on prior transactions, that the items of the account are true and that the balance struck is due and owing. Assent may be implied from conduct, including failure to object to a statement within a reasonable time. To establish an account stated, the plaintiff must prove (1) Previous transactions between the parties establishing a debtor-creditor relationship; (2) An agreement between the parties, express or implied, on the amount due from the debtor to the creditor; and (3) A promise by the debtor,

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express or implied, to pay the amount due. (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491; *Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 968.)

Here, Plaintiff established prior credit transactions, borrowing and payments, regular delivery of statements, the July 13, 2023 last payment, charge-off, and a final statement showing \$66,255.92. Defendants admit the historical account relationship and statement delivery, and their challenge to the balance is vague and unsupported by any specific alternative calculation.

Although Plaintiff's separate statement does not separately state, in direct terms, "Defendant failed to object to the statement within a reasonable time" or "Defendant assented to the balance," given the admitted account relationship, the statements, the RFA admissions cited by Plaintiff, and the lack of a specific supported accounting dispute, summary adjudication on account stated is appropriate here. Plaintiff has met its burden and Defendants have failed to raise any triable issue of material fact.

Plaintiff's motion for summary adjudication as to the second cause of action for account stated against the Law Offices of Michael E. Reznick is GRANTED.

3. Fourth Cause of Action (Breach of Guaranty against Defendant Reznick)

To prevail on a breach of guaranty claim, the plaintiff must prove: (1) A valid guaranty; (2) the borrower's default; and (3) the guarantor's failure to perform under the guaranty. (*Grayl CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486; see also *Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813.)

Plaintiff has strong evidence of a written guaranty: the application contains express language that Defendant Reznick signed "in my individual capacity" and "jointly and severally unconditionally" guaranteed the applicant's indebtedness; Plaintiff also established borrower default, demand, and nonpayment. Those facts normally satisfy the core elements of breach of guaranty. (See *Grayl CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, for enforcement of an unconditional guaranty.)

However, Defendants produced Defendant Reznick's declaration and deposition testimony that Plaintiff's loan representative, Lauren Waggoner, allegedly assured him before signing that the guaranty would not be enforced personally, that Plaintiff would look to the business first, and that any repayment issue would be addressed through a workout. Defendants frame this as fraudulent inducement and equitable estoppel.

Plaintiff's parol evidence argument is not enough, by itself, to eliminate that defense at summary adjudication. Under *Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.* (2013) 55 Cal.4th 1169, 1174-1177, parol evidence may be admissible to prove fraudulent inducement, even where the alleged oral statements are inconsistent with the written terms. The alleged Waggoner statements are offered not merely to vary the guaranty's terms, but to challenge enforcement of the guaranty based on fraud and estoppel. *Riverisland* confirms that the fraud exception permits parol evidence to challenge the validity of an agreement, even where the alleged representation is at odds with the written terms. The fact that Defendant Reznick is an

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attorney and the guaranty language is clear makes his reliance argument difficult, and Plaintiff may ultimately prevail. But at the summary adjudication stage, the Court generally should not, and will not, weigh credibility. The record permits competing inferences concerning the alleged representations, reliance, and whether Wells Fargo is estopped from enforcing the guaranty against Michael Reznick individually. On this record, the Waggoner-representation evidence is enough to create a triable issue as to the guaranty defense.

Plaintiff's motion for summary adjudication as to the fourth cause of action for breach of guaranty against Defendant Michael E. Reznick individually is DENIED.

Because the Court denies summary adjudication of the Fourth Cause of Action on the present record, Defendants' alternative request for a continuance under CCP § 437c(h), to depose Lauren Waggoner is **MOOT**.